California Fractional HR COMPLIANCE-FIRST · STATEWIDE

CALIFORNIA LEAVE · STEP BY STEP

Paid Sick Leave — *Step by Step*

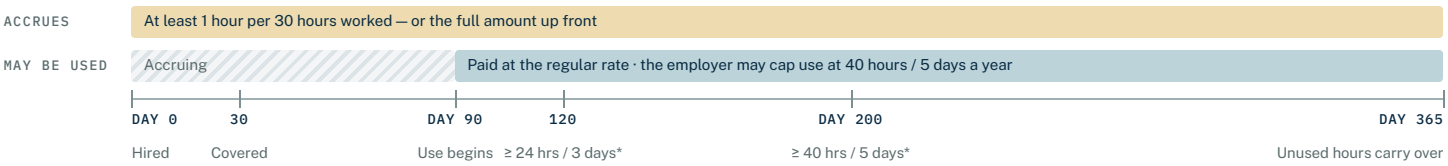
Every employer. Covers anyone who works 30 or more days in California within a year; use can start after 90 days of employment. At least 1 hour per 30 hours worked, paid at the regular rate.

IS THE JOB PROTECTED?
Yes. Paid sick leave protects the job.

IS ANYTHING REPLACING THE PAY?
Yes. The employer pays it at the regular rate.

DOCUMENT OR ACTION	WHO → TO WHOM	WHEN	NOTE
1 Before any leave — the notices			
Notice to Employee Labor Code §2810.5	**Employer → Non-exempt employee**	At hire, no later than the start date.	Includes the sick leave terms. Changes go out in writing within 7 calendar days, unless shown on a timely wage statement.
Paid sick leave poster	**Employer → Workplace**	Posted where it can be easily read during the workday.	
Sick leave balance	**Employer → Employee**	Every payday.	On the pay stub, or on a document issued the same day.
2 Employee requests sick leave			
Request	**Employee → Employer**	Planned: reasonable advance notice. Unplanned: as soon as practical.	Oral or written.
3 Employer responds			
Approval	**Employer → Employee**	Don't require the employee to find a replacement.	Don't deny leave solely for lack of a health provider's note; ask for documentation only with information that the purpose isn't valid.
4 Employer pays			
Pay for sick leave taken	**Employer → Employee**	No later than the payday for the next regular payroll period.	At the regular rate.

YEAR ONE OF EMPLOYMENT · A FULL-TIME EXAMPLE



*Under an alternative accrual method, the employee must have at least 24 hours / 3 days by day 120 and 40 hours / 5 days by day 200. (Lab. Code §§245.5, 246, 246.5)

MAY BE USED FOR
The employee's or a family member's illness, care, or preventive care (family includes a designated person) · victims' leave purposes · jury and witness duty.

THE EMPLOYER MAY LIMIT
Use to 40 hours / 5 days a year · total accrual to 80 hours / 10 days · minimum increment of up to 2 hours.

THE EMPLOYER MAY NOT
Require the employee to find a replacement, deny lawful use, or count protected use against attendance.

THE FULL TRAINING **Sick Leave and Serious Illness** — one illness, two stages, on one calendar. Four minutes, free: calfractionalhr.com/sick-leave

Starting framework, not legal advice — verify current figures before acting. The employer may cap use at 40 hours / 5 days a year and the balance at 80 hours / 10 days. Local ordinances (for example, Los Angeles and San Francisco) can require more. For executives and managers — not company policy.

NOT LEGAL ADVICE
CURRENT AS OF 10.31.2026
calfractionalhr.com